

TN.2 Permit Application Checklist

What to gather before you file — and which of it applies no matter what your jurisdiction decided about the building code.

Before you use this document

This is a process reference, not legal advice. Tennessee adopts one state residential code and then gives your jurisdiction three different ways to answer for it: run its own building department, let the State Fire Marshal enforce the state code through contract inspectors, or opt out entirely so that no residential building code is enforced at all. The unit is the **jurisdiction**, not the county — a city inside an opted-out county routinely has a different status from the county around it. What does not depend on any of that: the state electrical permit, the subsurface sewage disposal permit, and contractor licensing. Confirm every item with the office that will actually handle your parcel before you rely on it. Fee figures were read from the rules and the agencies' own fee pages in September 2026. One of them — the minimum construction cost per square foot — is a website number rather than a rule number and will drift. Check it before you budget.

WHAT APPLIES WHATEVER YOUR STATUS

TN.1 settled whether a building permit exists where you are building. **This page is the part that does not care.** Every item below applies in an opted-out county exactly as it applies in Nashville.

The approvals that do not depend on your jurisdiction's status

What	When and why
Subsurface sewage disposal permit	Unless you are on public sewer. TDEC, on form CN-0971. Constrains where the house can sit — do it first
State electrical permit	Unless your jurisdiction is on the state's electrical exempt list. Survives a building-code opt-out completely
Notice of Intent to drill	If you are on a well. Filed <i>before</i> drilling starts, and the driller must be able to show it on site
Zoning approval	A building-code opt-out is not a zoning opt-out. The state permit expressly excludes zoning
Floodplain development permit	If the parcel is in a mapped hazard area. Local administrator, independent of the building code
Construction stormwater permit	Only if total disturbance reaches one acre — see the last section, because driveways are what push people over
Utility locate	Tennessee 811, free, before any excavation

THE CODE EDITIONS ACTUALLY IN FORCE

What binds a house under the state program

Trade	Code and edition	Cite
Residential building	2018 International Residential Code , plus Appendix Q (tiny houses), with ten Tennessee amendments	0780-02-23-.02(1)(a)
Electrical	2017 National Electrical Code , effective 1 October 2018. Not 2020. Not 2023. See below	0780-02-01-.02(1)
Energy	2018 IECC or Chapter 11 of the 2018 IRC, your choice — but with the envelope tables and the testing provisions replaced by the 2009 editions	0780-02-23-.02(1)(b)
Plumbing, mechanical, fuel gas	The 2018 IRC's own chapters . Not the 2021 IPC, IMC or IFGC — those are adopted in the separate commercial chapter and do not govern a house	0780-02-23-.02(1)(a)
Fire sprinklers	Not mandatory in one- and two-family dwellings or townhouses. Because townhouses are unsprinklered they must be separated by two-hour fire walls	§ 68-120-101(a)(8)

***This table is the STATE program's.** An EXEMPT jurisdiction enforces its own adopted code and need only stay within **seven years** of the current published edition — so a large city may well be on something newer, including a newer NEC. Ask yours which editions it reviews to and write them on the line below.*

The 2017 NEC is the single most expensive assumption in Tennessee

Tennessee is **two code cycles behind** on electrical and the rule is current, not stale — chapter 0780-02-01 was revised on 14 July 2025 and still adopts the "**National Electrical Code, 2017 edition**... effective October 1, 2018." The State Fire Marshal's own electrical page says the same thing.

Two Tennessee amendments sit on top of it, and both are more permissive than the national text. Section 110.24 available fault current "shall be optional," and arc-fault protection "shall be optional for bathrooms, laundry areas, garages, unfinished basements... and for branch circuits dedicated to supplying refrigeration equipment."

Why it costs money either way. Design to the 2023 NEC and you buy protection Tennessee does not require. Design to a national reference and you may miss a 2017-era rule that later editions changed. And if you are in an EXEMPT city that adopted a newer NEC, none of the above applies to you. Ask which edition your inspector reviews against, and write it down before you buy a panel.

Confirm the two editions this kit will not guess at for your jurisdiction

	Item	Date	Notes
☐	The residential code edition my jurisdiction reviews to, and who told me: Edition _____ Source _____		
☐	The NEC edition my electrical inspector reviews to: Edition _____ Source _____		

THE ENERGY ANSWER — NO MANDATORY BLOWER DOOR

Tennessee adopts the 2018 energy code on paper and then amends the parts with teeth back to **2009**. If you have built in a 2018 or 2021 IECC state, this will not be what you expect.

What Tennessee did to the energy code

Provision	Tennessee's treatment
Whole-house air leakage test	Not mandatory. The 2018 testing section is "replaced with Section N1102.4.2.1 Testing Option and Section N1102.4.2.2 Visual Inspection from 2009 IRC" — a choice between a test and a checklist inspection
Duct testing and duct leakage	"Duct Testing (Mandatory)" and "Duct Leakage (Prescriptive)" are optional . Both of them
Insulation and window tables	The 2018 tables are "replaced with Table N1102.1... and Table N1102.1.2 Equivalent U-Factor from 2009 IRC. " Do not build to 2018 IECC R-values and assume they are required here
Rooms with fuel-burning appliances	Section N1102.4.4 is "deleted in its entirety"
A separate energy inspection	There is none. "Energy efficiency inspections shall occur during the required inspections" (rule .07(2)(c))

*Quoted from rule 0780-02-23-.02(1)(a) items 5 to 8 and .02(1)(b). **The reverse error is also possible:** this is the state program's answer. An EXEMPT jurisdiction on a newer local code may well require a blower door. The paperwork that is required either way: blown or sprayed insulation needs "a manufacturer's product data sheet and installation certificate stating the product meets or exceeds the energy code."*

THE STATE PERMIT FEE, AND HOW IT IS COMPUTED

This section applies in SRBP jurisdictions, and to anyone in an opt-out county buying a state permit voluntarily. The fee is banded on **estimated cost of construction** — and the state sets a floor under that estimate so you cannot shrink the fee by lowballing it.

Base permit fee — rule 0780-02-23-.08(1)

Total construction cost	Fee
\$0 to \$5,000	\$100
\$5,001 to \$100,000	\$350
\$100,001 to \$150,000	\$400
\$150,001 to \$200,000	\$450
\$200,001 to \$250,000	\$500
\$250,001 to \$300,000	\$550
\$300,001 and up	\$550 for the first \$300,000, plus \$50 for each additional \$50,000 or fraction of it

*The floor on your estimate, from the State Fire Marshal's fee page as it read on 25 March 2026: "**The cost of construction cannot be less than \$60.57 per heated square foot of construction.**" Treat that figure as perishable — it is published on a web page rather than in the rule, and the rule itself sets the floor by reference to ICC Building Valuation Data at a 0.60 cost modifier. Check it the week you file.*

A worked example, so the arithmetic is not a surprise

A **2,000 sq ft heated** house. Minimum declarable cost is $2,000 \times \$60.57 =$ **\$121,140**, which lands in the \$100,001–\$150,000 band: **\$400** base. The HVAC and plumbing inspection is required on all new construction and adds **\$100**. If the footings are cast separately from the slab, the slab inspection adds another **\$100**. **So \$500, or \$600 with a separate pour** — with one re-inspection included free.

The fee that hurts is the one for starting early. Anyone who begins work before obtaining the permit "shall be subject to an additional fee of **one hundred percent (100%) of the required permit fee for each violation**" (rule .08(9)).

The add-on fees — rule 0780-02-23-.08

Fee	Amount	When
Plumbing and mechanical inspection	\$100	Required on all new construction
Slab inspection, other than a monolith pour	\$100	When footing and slab are cast separately
Prefabricated wall inspection	\$100	If prefabricated walls are used

The add-on fees — rule 0780-02-23-.08

Fee	Amount	When
Re-inspection after more than one rejection	\$100	The first re-inspection is free
Consultation inspection, or a temporary CO	\$100	On request
Duplicate permit, if you lose it	\$10	Rule .05(8)

What the application itself must contain is short: location, a description of the work, use and occupancy, the valuation, the square footage, and your signature. You must also **certify, with proof available on request, the "availability of public sewer or a septic permit"** — which is why the septic package below comes first. And usefully: "proof of licensure is not required for a property owner purchasing the permit when the property owner is performing the work" (rule .05(4)).

Two clocks start at issue. Work must commence within **180 days** or the permit is void, and the permit expires **two years** from issue or when the certificate of occupancy is issued, whichever comes first (rule .05(7)). Permits are non-transferable, and if you stop acting as the owner-builder and hire a contractor, a **new permit** is required.

THE SEPTIC PACKAGE, IN ORDER

One form covers it: **CN-0971, Application for Water Resources Services**. The septic construction permit is line item 1 on it.

The sequence, and what each step actually is

	Step	What the rule says
0	Is there sewer?	If a public sewer is accessible, TDEC "shall refuse to grant a permit" for a septic system (rule .06(2)). Settle this first
1	Soil and site evaluation	Suitability is determined by a "high or extra-high intensity soil map completed by an approved soil consultant ." On a lot that is not part of a subdivision you may instead let TDEC's own staff evaluate the site
2	Percolation test, sometimes	Conditional, not universal — it needs at least 24 inches of undisturbed soil and a slope of 30% or less. TDEC must be notified at least three days before the test
3	Construction permit	The operative permit: no one may "construct, alter, extend or repair" a system without one. It expires in three years
4	Construction inspection	"No system shall be covered without the inspection and authorization of the Commissioner." If the system has electrical components, an electrical inspector must approve them first

*Rule chapter 0400-48-01, "Regulations to Govern Subsurface Sewage Disposal Systems", TDEC Division of Water Resources. **Note the agency:** septic moved from the Department of Health to TDEC — the chapter's own administrative history records that it was "renumbered from 1200-01-06", the Health Department's series.*

Any guide that sends you to the county health department is working from pre-2013 sources. Fees, from CN-0971: **\$400** for the permit evaluation up to 1,000 gallons per day, plus **\$100** for the required conventional system construction inspection — **\$500** for a normal house.

Two things about the septic permit that are pure Tennessee

It can gate your electricity. Anyone intending to construct a house "shall furnish evidence to the official electrical inspector that... an application for a subsurface sewage disposal system construction permit has been made... or... the house is served by a public sewerage system" (rule .06(5)(a)). Note it is an *application*, not an issued permit. This does not apply "[w]here there is an established **countywide building permit program**" — so it bites hardest in exactly the rural counties that have no building code.

Nine counties are not served by a TDEC field office at all. Shelby, Madison, Davidson, Williamson, Hamilton, Knox, Blount, Sevier and Jefferson are *contract counties* — if you are in one of them, your county environmental health office is the counter, not the state. The commonly repeated version of this list names only five and would misroute an application in four counties.

IF YOU ARE ON A WELL

The well sequence

	What the rule requires
You may not drill it yourself	The rules bar <i>any person</i> from constructing a well except in accordance with the Water Wells Act and require a TDEC license to drill. TDEC states it flatly: Tennessee licensed general contractors, electricians and plumbers are not permitted to install or maintain wells, pumps or treatment systems unless separately licensed by TDEC
Notice of Intent, before drilling	Filed by the owner or the driller prior to commencement , with a \$75 fee. "No well or borehole shall be drilled unless the driller has documentation that a Notice of Intent has been filed." It expires in 180 days
Report of Well Driller, after	Within 60 days of completion — with the log, casing detail, static water level, and latitude and longitude to the nearest second. It must also confirm the septic tank and field lines are 50 feet or more from the well
Disinfection is mandatory	"All water wells shall be disinfected upon completion" to a chlorine residual of at least 100 ppm , left standing not less than 12 hours , then pumped out

Chapter 0400-45-09, "Water Well Licensing Regulations and Well Construction Standards" — like the septic chapter, renumbered out of the Health Department's 1200 series. **A property-line rule worth knowing before you site the well:** new wells may not be closer than **10 feet** to a property line, and a well between 10 and 25 feet of one requires **35 feet of casing** set in grout (rule .10(2)(d)). Siting the well a few feet further in can save a great deal of casing.

The 25-foot number in the well rules is not for your drinking water well

The well chapter contains a second setback table, at rule 0400-45-09-.17, giving **25 feet** from septic tanks and drain fields. **That table is for closed-loop geothermal boreholes.** For a water supply well the distance is **50 feet**, and it is stated three separate times — in the septic chapter's table, in the well chapter's Table A, and again on the driller's completion report. A reader skimming the chapter and finding 25 feet will site their well far too close.

STORMWATER — THE ONE-ACRE TEST, AND A DATE

You need a construction stormwater permit if the work results in "**the disturbance of 1 acre or more of total land area.**" Most single-house lots stay under it. **What pushes owner-builders over is almost never the house.** Total land area includes the driveway, the septic field and its reserve area, the well pad, staging and spoil — and a long drive on a rural parcel adds up faster than people expect.

A dated change you need to be on the right side of

Tennessee's construction general permit turned over while this kit was being written. The outgoing permit expired **30 September 2026**; the **2026** permit took effect **1 October 2026** and runs to 2031. TDEC's own notice warned that the forms would change on that date. **If you are breaking ground on or after 1 October 2026, make sure you are working from the 2026 permit and its forms,** not a copy someone saved earlier.

Separately, and more likely to catch you: if your driveway crosses a stream or you disturb a wetland, that is an **Aquatic Resource Alteration Permit**, which is a different permit from a different program — and TDEC lists "**road and utility crossings**" among the activities that require one. General permits exist for routine crossings. A federal Army Corps permit and, near a TVA reservoir, a TVA approval may sit on top.

And the one nobody sees coming: draining to a sinkhole makes it a well

Tennessee is karst country, and its Underground Injection Control rules define an "**improved sinkhole**" as "a naturally occurring karst depression **modified by man** in such a manner that the chemical, physical, biological, radiological, or bacteriological properties of the water or fluids moving into the subsurface through it have been or will be altered."

The same chapter defines an **injection well** to include "(c) **An improved sinkhole**" and "(e) Modified recharge point," lists both among Class V wells, and then requires that "**all injection wells and activities must be authorized by permit or by rule.**"

In plain terms: route your driveway runoff, your roof drains or a graded swale into a sinkhole on your lot and you have arguably built a Class V injection well. Filling or grading around a sinkhole is not neutral earthwork in Tennessee. Many Class V wells are authorized by rule rather than by individual permit, so this is usually a conversation rather than a catastrophe — but it is one to have with the field office *before* the excavator arrives.

Chapter 0400-45-06, "Underground Injection Control", revised November 2024 — another chapter renumbered out of the Health Department's 1200 series. **We have deliberately not printed a fee**, because the chapter's fee rule was not read. Note also that the UIC chapter defines a septic system as "a 'well' that is used to emplace sanitary waste below the surface" — which is why the septic chapter excludes sinkholes from usable area and the UIC chapter regulates altering them. The two point the same way.

PERMIT RECORD — FILL THIS IN AS EACH ONE ISSUES

Every approval on this build

	Item	Date	Notes
☐	Septic construction permit — or written confirmation that public sewer is available: Number _____ Issued _____ Expires _____		
☐	Septic construction inspection passed, before covering: Date _____ Inspector _____		
☐	Notice of Intent to drill filed, and the driller's TDEC license number: NOI number _____ Driller license _____		
☐	Report of Well Driller received — due within 60 days of completion: Date received _____ Well ID _____		
☐	Building permit , if one exists where I am building: Number _____ Issued _____ Expires _____		
☐	Electrical permit: Number _____ Issued _____ Amps _____		

Every approval on this build

	Item	Date	Notes
☐	Zoning approval: Reference _____ Date _____		
☐	Floodplain determination — in or out of the mapped hazard area: Result _____ Who confirmed _____		
☐	Driveway or culvert permit , and whether the crossing needed an ARAP: Permit _____ ARAP needed? _____		
☐	Stormwater — total disturbed area I calculated, and whether it reached one acre: Acres _____ Permit if needed _____		
☐	911 address assigned: Address _____ Date _____		
☐	Certificate of occupancy , if one is issued where I am building: Number _____ Date _____		

The rules are the part you actually need, and they are free. publications.tnsosfiles.com hosts them as dated PDFs — **0780-02-23** residential, **0780-02-01** electrical, **0400-48-01** septic — and the filename carries the effective date, so you can always tell whether yours is current. Statutes are published under contract by LexisNexis at lexisnexis.com/hottopics/tncode. **One warning:** building and electrical rest on separate authority — Title 68, Chapter 120 and Title 68, Chapter 102. Conflating them is why so many guides wrongly imply that opting out of the building code ends your permit obligations. It does not. Read September 2026.